



DEPARTMENT OF NATURAL RESOURCES

Division of Water Resources

RULES AND REGULATIONS FOR FEES SET AND COLLECTED BY THE STATE ENGINEER FOR THE WATER DATA BANK CASH FUND THE DIVISION OF WATER RESOURCES PUBLICATION CASH FUND, AND THE SATELLITE MONITORING SYSTEM CASH FUND

2 CCR 402-9

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

RULE 1 TITLE:

The title of these rules and regulations is, "Fees Set and Collected by the State Engineer for the Water Data Bank Cash Fund, the Division of Water Resources Publication Cash Fund, and the Satellite Monitoring System Cash Fund". The short title for these rules and regulations is "Fee Rules And Regulations". They may be referred to herein collectively as the "rules" or referred to individually as a "rule."

RULE 2 AUTHORITY:

These rules are promulgated pursuant to the authority granted the State Engineer in 37-80-111.5, C.R.S. (1990 Repl. Vol.); 37-80-102(1)(h) and 102(1)(k), C.R.S. (1969); 24-72-205, C.R.S. (1988 Repl. Vol.), and 24-4-103, C.R.S. (1988 Repl. Vol.).

RULE 3 SCOPE AND PURPOSE:

These rules are necessary as 37-80-111.5 C.R.S. (1990 Repl. Vol.) requires fees be set and collected by rule and regulation for the distribution of data generated, collected, studied and compiled about the water supplies of the state, the sale of publications of the division of water resources, and the use of equipment and programs of the division's satellite monitoring system. Such fees are to be deposited, as appropriate, in the water data bank cash fund, the Division of Water Resources publication cash fund, and the satellite monitoring system cash fund.

RULE 4 DEFINITIONS:

- 4.1 "Computer Readable Data"** is data retrieved from a Division's computer and stored in a format (floppy disk, etc.), or transmitted in some other manner (through a telephone line, etc.) for the purpose (primary or secondary) of being stored in another computer.
- 4.2 "Cost of Printing"** is the cost of the initial press run.
- 4.3 "Database"** is a collection of information stored on computerized hardware and managed systematically by computer software.
- 4.4 "Direct Access"** is access by way of a computer terminal to data stored in a division computer.
- 4.5 "Direct Costs"** for the Water Data Bank and other computerized data bases, excepting the Satellite Monitoring System, are that portion of the personal services costs (salary, PERA, health/life/dental/STD/medicare insurance) required to provide a product or service to a customer to whom a fee is being charged. The provisions for direct costs are set forth in Rule 8.

- 4.6 “Direct Costs”** for publications are that portion of the personal services costs (salary, PERA, health/life/dental/STD/medicare insurance) required to provide a product or service to a customer to whom a fee is being charged and include only that part required for the preparation of the final report since personal services for the collection and analysis of data, and to a great extent, the report itself, are expended on behalf of the statutory responsibilities of the division.
- 4.7 “Indirect Costs”** within the context of these rules are defined as the estimated mailing charges.
- 4.8 “Initial Press Run”** is defined as the printing of a sufficient number of copies to equal the total number of copies needed for office use, free distribution to other public agencies, colleges and libraries, and estimated public demand for the first year of availability.
- 4.9 “Megabyte”** is one million characters of computer data including any characters stored within data files as part of the standard file structure.
- 4.10 “Newsletter”** is defined as Colorado Stream Lines, a quarterly newsletter of the Office of the State Engineer, Division of Water Resources, the purpose of which is to inform the water user community of Colorado, and others, of the general activities of the division and, as appropriate, other administrative, technical and legal matters the division determines to be edifying.
- 4.11 “Open File Report”** is a report on some aspect or responsibility of the Division that is complete and available for viewing by the general public but is not a published report.
- 4.12 “Publication”** includes, but is not limited to, printed material such as the Newsletter, published reports and open file reports. It excludes reports covered by Rule 5.1.3 (Water Data Bank Printed Reports) and Rule 7.1.4 (Satellite Monitoring System Printed Reports).
- 4.13 “Published Report”** is a preprinted report that has gone through a formal publication process that includes, but is not limited to, review by peers and acceptance by Division management as a Division publication, and contains as a minimum a separate title page with the authors name, a table of contents, and text.
- 4.14 “Reports”** include, but are not limited to, a Division Newsletter, published reports, open file reports, standard and special reports.
- 4.15 “Special Materials”** include those supplies and materials necessary for production of the original press-ready copy of reports and maps. This includes, but is not limited to, drafting materials and supplies, computer disks, tapes and papers, non-standard office supplies, and special reproduction and photographic processing costs.
- 4.16 “Special Report”** is a report requiring programmer and/or analyst work time to create or use for the retrieval, viewing or printing of data.
- 4.17 “Standard Report”** is a report form already available for, and used by, the computer system, for the retrieval, viewing or printing of data.
- 4.19 “User”** is a non-division person, or entity, who uses Division data.
- 4.20 “User Access”** is direct access by a user by way of a computer terminal in the division's offices, or a telephone, to the data stored in a Division computer for the purpose of viewing the data on a computer screen, or creating a computer readable data file.
- 4.21 “User Service”** is the receiving, processing and storing of user supplied data in a computer of the Division and allowing the user “user access” to that data.

RULE 5 FEES — WATER DATA BANK CASH FUND

These fees apply to data and reports generated through or by water data bank resources, including other Division computer databases but excluding those created by and for the satellite monitoring system.

5.1 Data from the Water Data Bank and Other Computerized Data Bases

5.1.1 “User Access” - The Division does not currently provide user access by way of telephones to this data.

5.1.2 “Computer Readable Data” - Fifty dollars (\$50) for the first megabyte or any fraction thereof plus twenty-five dollars (\$25) for each additional megabyte or fraction thereof plus programming fees if applicable (see Rule 8). This fee applies to each request made for such data. (Example: Company A comes in on Monday and requests data consisting of 1.1 megabytes. That fee is \$75.00. If Company A comes back the next day and requests data consisting of 0.9 megabytes, that fee is \$50.00).

5.1.3 Printed Report

5.1.3.1 “Standard Report - General” - The cost of a standard report, excepting a standard water rights report, shall be fifty cents (\$0.50) per page.

5.1.3.2 “Standard Report - Water Rights” - The cost of a standard water rights report shall be twenty cents (\$0.20) per page with a five dollar (\$5) minimum charge except that copies of single pages shall be at fifty cents (\$.50) per page.

5.1.3.3 “Special Report” - The cost of a special report shall be fifty cents (\$0.50) per page plus programming fees as specified in Rule 8.

5.2 Microfiche

5.2.1 Print Copies from microfiche - The cost for print copies from microfiche shall be fifty cents (\$0.50) per page. The Division can not assume responsibility for the quality of print copies made from microfiche. The fifty cents (\$0.50) fee per page requested is applicable to each print copied regardless of the quality of the prints copied from the microfiche.

5.2.2 Copies of microfiche - The division does not own or control any fiche duplicating equipment. Duplication of fiche shall be accomplished at commercial facilities. The costs of duplication shall be the charges by the commercial vendor plus a twenty dollar (\$20.00) handling charge. The division cannot assume responsibility for the quality of duplicate copies of microfiche. The total fee is applicable regardless of the quality of the microfiche copy produced. The fiche from which duplicates are made shall remain under the control of the division.

RULE 6 FEES — DIVISION OF WATER RESOURCES PUBLICATION CASH FUND

6.1 Newsletter - The price charged for the Division Newsletter shall be a yearly subscription price of ten dollars (\$10). If copies of articles or certain pages from specific issues of the Newsletter are requested, the fee shall be fifty cents (\$ 0.50) per page.

6.2 Published Report - The price charged for a published report produced by the Colorado Division of Water Resources, Office of the State Engineer, shall be established using the following formula:

UNIT PRICE (rounded to the nearest dollar) = UNIT COST OF (DIRECT COSTS + INDIRECT COSTS + SPECIAL MATERIALS + COST OF PRINTING)

6.3 Open File Reports - The cost of an open file report shall be fifty cents (\$0.50) per page and/or two dollars (\$2.00) per plat, as applicable.

RULE 7 FEES — SATELLITE MONITORING SYSTEM CASH FUND

These fees apply to data and reports generated through or by Satellite Monitoring System resources.

7.1 User Access - User access fees shall be \$100 per month per water division. The Division shall not be responsible for any user costs, including, but not limited to, costs for hardware and/or software and telephone charges necessary to access the computer where the data is stored.

7.2 User Service - User service fees shall be \$100 per month per station. The Division shall not be responsible for any user service costs, including, but not limited to, costs for hardware and/or software and telephone charges necessary to access the computer where the data is stored, or costs for hardware and/or software necessary to collect the data in the field and transmit it to the computer where the data is stored. Included in this fee are reasonable Division personnel and operating expenses to assist the user in setting up the hardware necessary to transmit data to the computer where the data is stored.

7.3 Computer Readable Data - The cost of computer readable data shall be fifty dollars (\$50) for the first megabyte or fraction thereof and twenty-five dollars (\$25) for each additional megabyte or fraction thereof plus programming fees if applicable (see Rule 8).

7.4 Printed Report

7.4.1 Standard Report - The cost of a standard report shall be fifty cents (\$.50) per page.

7.4.2 Special Report - The cost of a special report shall be fifty cents (\$.50) per page plus programming fees as specified in Rule 8.

RULE 8 PROGRAMMING FEES

Forty-five dollars (\$45) per hour for the DWR programmer and/or analyst work time, with a minimum charge of 2 hours of the DWR programmer's and/or analysts's time.

RULE 9 FEES — FAX COPIES

9.1 Local Calls - FAX copies shall be at \$1.00 per page including the initial transmittal sheet.

9.2 Long Distance Calls - FAX copies shall be at \$1.50 per page including the initial transmittal sheet.

RULE 10 EXCEPTIONS TO CHARGES

The State Engineer may authorize exceptions to any charge when he determines such exception to be in the best interest of the Division. Conditions for such exceptions include, but are not limited to, providing other State agencies with free copies of records, reports or data as provided in statutes, rules and regulations, providing other entities with free copies of records, reports or data as provided by contractual arrangements, or providing other entities with free copies of records, reports or data as a quid-pro-quo arrangement for their records, reports or data.

RULE 11 HANDLING OF REVENUES

11.1 Collection of Revenues - All charges for data, publications, use of services and materials are due and payable in cash when the customer receives the data, publications, services, or materials or prior to mailing the data, publications, or materials and/or prior to providing the services to the

customer. In the event that a customer has been paying for such data, publications, material and/or services for a period in excess of one year through the use of checks or monthly billings and no collection problems have occurred, the division staff may continue to accept checks or bill the customer monthly. In the event that a customer wishes to begin to utilize checks or monthly billings to pay for such charges, the division may establish a trial period of six (6) months during which checks and/or monthly billings may be utilized. In the event that collection problems occur and/or a customer refuses and/or fails to pay such billings, collection procedures as defined in the state fiscal rules will be instituted immediately. The division reserves the right to refuse to respond to any requests for data or information from customers who refuse and/or fail to pay the fees established by these rules for any services or data.

11.2 Crediting of Revenues - Depending upon the source of the material requested, revenues shall be credited to the appropriate fund(s).

RULE 12 SEVERABILITY

If any portion of these rules is found to be invalid, the remaining portion of the rules shall remain in force.

RULE 13 RULE CHANGES

The State Engineer may revise these rules in accordance with 37-80-111.5, C.R.S. (1990 Repl. Vol.); 37-80-102(1)(h) and 102(1)(k), C.R.S. (1990 Repl. Vol.); 24-72-205 (1988 Repl. Vol.) and 24-4-103, C.R.S. (1988 Repl. Vol.).

RULE 14 EFFECTIVE DATE

These rules will become effective on April 1, 1994.

Editor's Notes

History